

PLJ 2022 Lahore 148 (DB)

Present: ABID AZIZ SHEIKH AND MUHAMMAD SAJID MEHMOOD SETHI, JJ.

ABDUL RASHEED--Appellant

versus

**LAHORE DEVELOPMENT AUTHORITY through
D.G. and others--Respondents**

I.C.A. No. 55377 of 2021, decided on 13.12.2021.

Limitation Act, 1908 (IX of 1908)--

---S. 5--Law Reforms Ordinance, (XII of 1972), S. 3--Rejection of bidding officer--Filing of writ petition--Dismissed--Principle of laches--Golden maxim--Law and Courts come to aid of a person who is vigilant and not to aid of a person who is negligent or indolent--In such cases, golden maxim that "law aids vigilant cannot be over-sighted--Helpful hand cannot be extended to a litigant having gone into deep slumber on having become forgetful of his rights--Single Judge, rightly refused to interfere in matter--No illegality has been pointed out in impugned findings--Petition dismissed. [P. 149] A & B

2012 SCMR 280 *ref.*

Ch. Kausar Ali, Advocate for Appellant.

Sahibzada Muzaffar Ali Khan, Advocate/Legal Advisor for Respondents-LDA.

Date of hearing: 13.12.2021.

ORDER

Through instant appeal, appellant has assailed vires of order dated 21.06.2021, passed by learned Single Bench of this Court, whereby appellant's constitutional petition, assailing order dated 17.05.2017, passed by Respondent No. 4 rejecting the bid offered by appellant, was dismissed on the principle of laches having been filed after lapse of 04-years.

2. Learned counsel for appellant, at the very outset, was confronted with the observations of learned Single Judge recorded in the impugned order *qua* laches. In response, he could not controvert the same despite arguments at some length.

3. Arguments heard. Available record perused.

4. Admittedly, the order impugned through constitutional petition was passed on 17.05.2017 and appellant came to know about said order on 02.10.2017 when the first criminal original filed by him was disposed of, however, despite having knowledge of the aforesaid impugned order, the writ petition was filed in the year 2021 *i.e.* about 04-years after passing of impugned order. Needless to observe here that law and Courts come to the aid of a person who is vigilant and not to the aid of a person who is negligent or indolent. In such cases, golden maxim that "law aids the vigilant and not the indolent" cannot be over-sighted. Helpful hand cannot be extended to a litigant having gone into deep slumber on having become forgetful of his rights. Learned Single Judge, keeping in view the above circumstances, rightly refused to interfere in the matter.

5. No illegality has been pointed out in the impugned findings, which are based upon the law laid down by the Hon'ble Apex Court in *State Bank of Pakistan through Governor and another v. Imtiaz Ali Khan and others* (2012 SCMR 280), thus, no exception can be taken to the same.

6. In view of the above, instant appeal, being devoid of any merit, is hereby **dismissed**. No order as to costs.

(J.K.) Petition dismissed